

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amy Klein	Team: Team # 6	CCRB Case #: 200907629	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/10/2009 7:40 PM	Location of Incident: On the corner of Court Street & Montague Street	18 Mo. SOL 11/10/2010	Precinct: 84		
Date/Time CV Reported Tue, 05/12/2009 11:49 AM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Fri, 05/15/2009 1:19 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Derek Almeida	25236	946426	BN IRT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Derek Almeida	Abuse: PO Derek Almeida questioned § 87(2)(b)			A . Exonerated	

Case Summary

§ 87(2)(b) filed a complaint with the CCRB by mail on May 12, 2009 (encl D 1-4). On May 10, 2009, at about 7:40 p.m., PO Derek Almeida approached § 87(2)(b) on the corner of Court Street and Montague Street in Brooklyn while § 87(2)(b) was waiting to meet a friend. The following allegation resulted:

- **Allegation A – Abuse of Authority:** PO Derek Almeida questioned § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation A** be **exonerated**.

On June 5, 2009, § 87(2)(b) accepted mediation. On September 21, 2009, this case was returned to the undersigned investigator after PO Almeida declined to mediate.

Results of Investigation

Civilian Statement:

Complainant/Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b) has black hair and brown eyes. § 87(2)(b) is employed § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on June 5, 2009 (encl. D 6-10). On May 10, 2009, at approximately 7:40 p.m., § 87(2)(b) arrived at the corner of Court Street and Montague Street in Brooklyn. § 87(2)(b) had just come from church and had a plan to meet a friend in front of Starbucks. § 87(2)(b) stood in front of a Duane Reade, which was closed, and across the street from the Starbucks. Two other people were standing and talking on the corner, about 70 feet away. The block was well-lit and there were no other officers or patrol cars in the area.

When § 87(2)(b) arrived, PO Almeida was already standing on Court Street a few feet further down the block. PO Almeida was in his early twenties, either Caucasian or light-skinned Hispanic, 155 lbs, and 5'11". He had black hair, was wearing a uniform, and was on foot. PO Almeida watched as § 87(2)(b) checked his cell phone, crossed Montague Street to the Starbucks, then turned around and walked back. § 87(2)(b) had been waiting on the corner for about fifteen minutes when PO Almeida approached him and said, "Hello."

§ 87(2)(b) replied "Hello." PO Almeida said, "What are you doing?" § 87(2)(b) said that he was waiting for a friend. PO Almeida asked, "Does he live around here?" § 87(2)(b) said, "No." PO Almeida asked, "Do you live around here?" § 87(2)(b) said, "No. I'm just waiting for him." PO Almeida asked to see § 87(2)(b)'s identification and § 87(2)(b) provided his MTA transit ID card. PO Almeida said, "Do you have anything else?" § 87(2)(b) provided his driver's license. § 87(2)(b) said, "What's the problem?" and gestured outwards with his hands, in order to emphasize the "What?" § 87(2)(b) was standing approximately four feet away from PO Almeida. PO Almeida said, "Stand with your hands at your side."

PO Almeida wrote § 87(2)(b)'s information down in his memo book. Then § 87(2)(b)'s cell phone rang. PO Almeida said, "You can't answer the phone." § 87(2)(b) said that it might be his friend calling and that answering the phone would help clear up the whole matter. However, PO Almeida still insisted that § 87(2)(b) not answer the phone. When PO Almeida gave § 87(2)(b) back his ID, he told § 87(2)(b) that he could not wait there. § 87(2)(b) said, "Well this is where I'm supposed to meet my friend. So if I can't wait here, and I didn't do anything, then where should I go?" PO Almeida said, "I don't know, but you can't wait here."

§ 87(2)(b) asked PO Almeida for his name and shield number. In response, PO Almeida pointed to his badge. § 87(2)(b) was still standing a few feet away and had trouble seeing the

badge, so he asked PO Almeida again. This time, PO Almeida verbally provided both his name and badge number. PO Almeida told § 87(2)(b) to move and § 87(2)(b) walked away.

NYPD Statements:

Subject Officer: PO DEREK ALMEIDA

- PO Almeida is a § 87(2)(b) *Hispanic male with brown hair and brown eyes.*
- *On the date of the incident, he was assigned to a foot post at the corner of Montague Street and Court Street in Brooklyn. He worked from 3:00 p.m. to 11:35 p.m. without a partner. He was dressed in uniform and was on foot.*

Memo Book

PO Almeida made an entry in his memo book regarding this incident. At 8:15 p.m., he noted that he prepared a UF-250 for § 87(2)(b) § 87(2)(b) D.O.B. § 87(2)(b) in regards to a robbery. PO Almeida also noted that § 87(2)(b)'s demeanor was "very rude; upset; outraged."

UF-250

The UF-250 indicates that PO Almeida stopped § 87(2)(b) for ten minutes. The circumstances leading to the stop were "actions indicative of casing victim or location" and "actions indicative of acting as a lookout." PO Almeida also listed the following additional factors as precursors for the stop: "area has a high incidence of reported offense" and "time of day/week corresponding to criminal activity." PO Almeida described § 87(2)(b)'s demeanor as "outraged" and "angry" (encl. E 4).

CCRB Testimony

On September 28, 2009, PO Almeida was interviewed at the CCRB (encl. E 5-6). On May 10, 2009, at approximately 7:40 p.m., he was standing at his post. He was working overtime in order to respond to specific conditions in the area, including robberies. PO Almeida first observed § 87(2)(b) standing in front of the TD Bank on the corner of Court Street and Montague Street. § 87(2)(b) was walking around near the front door to the bank, near an ATM machine, for approximately fifteen minutes. There were no other people hanging out in front of the bank or in the general vicinity. PO Almeida was directly across the street and had full view of § 87(2)(b). He suspected that § 87(2)(b) may have been planning to rob someone exiting the bank. § 87(2)(b) and PO Almeida made eye contact several times and when they did make eye contact, § 87(2)(b) would look away and change the direction that he was walking. PO Almeida crossed the street. § 87(2)(b) was still there, wandering in front of the bank. PO Almeida then walked back to his post. At this point, § 87(2)(b) crossed the street towards PO Almeida and PO Almeida approached § 87(2)(b).

PO Almeida questioned § 87(2)(b) as to what he was doing in the area. § 87(2)(b) stated that he was waiting for a friend. PO Almeida asked § 87(2)(b) whether his friend lived in the area and asked whether § 87(2)(b) lived in the area. § 87(2)(b) did not tell PO Almeida where he lived and did not give PO Almeida any details as to where his friend lived. PO Almeida asked § 87(2)(b) for identification and § 87(2)(b) asked, "Why?" PO Almeida responded that he needed to prepare a UF-250 in order to comply with police procedure. At this point, § 87(2)(b)'s cell phone rang. PO Almeida asked § 87(2)(b) not to answer the cell phone while he was taking § 87(2)(b)'s information down in his memo book and filling out the UF-250. At this point, § 87(2)(b) became outraged and asked why PO Almeida had stopped him. § 87(2)(b) raised his voice and started flailing his arms. PO Almeida told § 87(2)(b) to stand with his hands at his sides. PO Almeida then explained to § 87(2)(b) why he had stopped him. PO Almeida did not ask § 87(2)(b) to wait somewhere else.

NYPD Documents

UF-250 Index

The 84th Precinct UF-250 index for the incident date contains an entry for § 87(2)(b). The index indicates that this UF-250 was prepared by PO Almeida (encl. F 1).

Status of Civil Proceedings

- As of November 6, 2009, § 87(2)(b) has not filed a Notice of Claim with the City of New York regarding the incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B 2).

Subject Officer CCRB History

- PO Almeida has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. B 1).

Conclusions and Recommendations

Identification of Subject Officer

- PO Almeida acknowledged that he interacted with § 87(2)(b)
- PO Almeida also provided his name and shield number to § 87(2)(b) upon request.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Derek Almeida questioned § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g). Kamins references the case of People v. Santiago, in which anti-crime officers observed a civilian standing on a street corner for twenty minutes, apparently watching customers enter and exit a liquor store. The civilian crossed the street once and then returned to the corner, after which the officers made the decision to approach him. Although the officers believed that he was casing the store or its patrons, the Appellate Division held that the civilian's actions were innocuous and that "the entire sequence was devoid of any element of objective evidence to justify the officers' suspicion" Kamins, New York Search & Seizure, §2.03[1] 2-31 (2009 ed.) (encl. A 4). Furthermore, Kamins discusses the case of People v. Owens, in which the Appellate Division held that a police officer's hesitancy to make eye contact with an officer is innocuous and "not sufficient to justify an inquiry" §2.03[1] 2-30-31 (encl. A 4).

However, Kamins also discusses the case of People v. Pierce, in which it was ruled that innocuous behavior on the part of the defendant "might justify a level-one request for information," even if such behavior does not "generate sufficient suspicion that criminal activity is afoot" §2.03[1] 2-30 (encl. A 3). The New York Court of Appeals has held that an officer can request information from a civilian when there is "some objective credible reason for that interference not necessarily indicative of criminality" People v. DeBour, 40 N.Y.2d 210 (1976) (encl. A 1).

§ 87(2)(g)

[REDACTED]

Kamins states that, given the absence of a founded suspicion that criminal activity is afoot, a request for information must be limited in scope and must not contain accusatory questions that focus on the civilian as the subject of an investigation. In a request for information, “a police officer may ask questions regarding the identity and destination of an individual and his or her reason for being in a particular location” §2.01[1] 2-8 (encl. A 2). § 87(2)(g)

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation A** be **exonerated**.

Team: 6

Investigator: _____ :
Signature Amy Klein Print _____ Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date